

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: May 29, 2026

1	Roberson vs. Best Western International, Inc 2023-01341991	Motion – Other (For An Order Granting Relief From Waiver Of Trial By Jury) Plaintiff Ronna Roberson's motion for relief from jury waiver is GRANTED. (See Code Civ. Proc., § 631, subd. (g); TriCoast Builders, Inc. v. Fonnegra (2024) 15 Cal.5th 766, 773, 779-780, 782-783.) Plaintiff admits she has not timely posted jury fees. Plaintiff has, however, given timely notice of her demand for a jury trial in the
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		complaint and all of her CMC statements. (Compl. at p. 29 ["Plaintiff hereby demands a jury trial on all issues so triable."]; ROA Nos. 25, 47, 57, 59 [3/25/25, 4/28/25, 11/18/25 CMC statements], 63 [notice of posting jury fees].) Further, the Court has already set the matter for a jury trial (ROA No. 61 [11/25/25 minute order]); plaintiff has posted the requisite jury fees as of 2/2/26 (Janfaza Decl. ¶ 7; see ROA No. 63); the trial date is still well over a year away on 8/2/27; and nothing in the record or the defendants' opposition papers suggests that anyone will suffer any hardship or prejudice if the court grants plaintiff relief from the jury waiver. (See Castillon-Mendoza Decl., in passim.) Where, as here, the plaintiff has made a timely demand, but has failed to timely post the jury deposit fee, "lack of hardship to the other parties or the court is generally controlling, absent other factors that weigh against relief." (TriCoast Builders, Inc. v. Fonnegra, supra, 15 Cal.5th at p. 782.) Plaintiff shall give notice.
3	Pimentel vs. Trider 2024-01388480	Motion to Deem Facts Admitted Defendants Trider Corporation and Alan Trider's unopposed Motion to Deem Matters Admitted as to Request for Admissions, set one, propounded to plaintiff David Pimentel is granted. Trider is awarded sanctions in the total amount of \$1,160.00 against Pimentel, payable within 30 days. The Court awards sanctions in the amount of \$1,160.00 which reflects 2 hours motion preparation and hearing time @ \$550 per hour + \$60 filing fee. Trider to give notice.